

1 AN ACT relating to the school-based Medicaid program.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 160 IS CREATED TO  
4 READ AS FOLLOWS:

5 **(1) Beginning in the 2027-2028 school year, if a school district elects to:**

6 **(a) Provide healthcare services through a school nurse to students, the school**  
7 **district shall bill the school-based Medicaid program for medically**  
8 **necessary services provided to Medicaid enrolled students for whom the**  
9 **district has obtained parental consent to bill; and**

10 **(b) Contract with a third-party billing vendor to bill the school-based Medicaid**  
11 **program for covered services, the school district shall contract with a**  
12 **vendor that has the capacity to:**

13 **1. Submit Medicaid billing claims for all codes listed in the current**  
14 **Medicaid Technical Assistance Guide; and**

15 **2. Bill for any code within the scope of practice for nurse practitioners.**

16 **(2) (a) Notwithstanding any provision of law to the contrary, school nurses shall be**  
17 **eligible to receive preventative dental services training provided by the**  
18 **Department for Public Health.**

19 **(b) School districts shall be permitted to bill for preventative dental services**  
20 **under the school-based Medicaid program when providing preventative**  
21 **dental services that are within the scope of practice of a school nurse to**  
22 **Medicaid enrolled students for whom the district has obtained parental**  
23 **consent to bill.**

24 **(3) This section shall not:**

25 **(a) Apply to a school district that contracts with its local health department for**  
26 **school nurse services; or**

27 **(b) Be interpreted as requiring a school district to provide healthcare services**

1                    *through a school nurse.*